

APPROVED

By Alessandra at 9:39 am, Jun 02, 2020

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM LI (LIGHT INDUSTRIAL) TO MUB (MIXED-USE BUSINESS EMPHASIS) FOR PROPERTY GENERALLY LOCATED NORTHWEST OF THE INTERSECTION OF WEST 21ST STREET AND REED AVENUE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 1, 2020, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 6-8, except that fractional part of said Lot 8 belonging to and a part of the R/W of the Colorado And Southern Railway Company, Block 225, Original City, Cheyenne, Wyoming is hereby changed to MUB Mixed-Use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Cheyenne Elevator – 800 and 816 W. 21st Street Zone District Map Amendment Process

CASE NUMBER(s): UDC-20-00153

SUBDIVISION CODE: ORC 225

PREPARED BY: Mark Christensen

MEETING DATES:	Planning Commission:	June 1, 2020	
	City Council:	June 8, 2020	1 st Reading
	Public Service Committee:	June 16, 2020	
	City Council:	June 22, 2020	2 nd Reading
	Public Service Committee:	July 7, 2020	
	City Council:	July 13, 2020	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map & Checklist; Draft Neighbor Notification Letter; Neighbor Notification List; Response to Zone Change Review Criteria
- Neighbor Notification Letter – postmarked 5/12/2020 (sent to demonstrate compliance with notification requirements)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on June 1, 2020, the City of Cheyenne Planning Commission recommended approval of the zone change request from LI Light Industrial to MUB Mixed-Use Business Emphasis by a vote of 5-0.

STAFF RECOMMENDATION: The Development Department recommends approval of the zone change request from LI Light Industrial to MUB Mixed-Use Business Emphasis.

STAFF REPORT

Cheyenne Elevator – 800 and 816 W. 21st Street **Zone District Map Amendment Process**

CASE NUMBER(s): UDC-20-00153 **SUBDIVISION CODE:** ORC 225
PREPARED BY: Mark Christensen
PUBLIC HEARING: June 1, 2020 (Planning Commission)

OWNER: Ful O Pep, LLC
2112 Seymour Ave.
Cheyenne, WY 82001

AGENT: Logan Ward (970) 797-3592
Ayres Associates
214 W. Lincolnway
Cheyenne, WY 82001

PROJECT: Cheyenne Elevator Zone Change

WORK DESCRIPTIONS: A zone change request from LI Light Industrial to MUB Mixed-use Business Emphasis for Lots 6-8, except that fractional part of said Lot 8 belonging to and a part of the R/W of the Colorado & Southern Railway Company, Block 225 of Original City.

LOCATION:

1. Legal Description: Lots 6- 8, except that fractional part of said Lot 8 belonging to and a part of the R/W of the Colorado & Southern Railway Company, Block 225 Original City, Cheyenne, Wyoming
2. Location: Northwest corner of the intersection of W 21st Street and Reed Avenue
3. Address: 800 and 816 W 20th Street

SIZE: 0.59 acres

CURRENT ZONING: LI Light Industrial
PROPOSED ZONING: MUB Mixed-Use Business Emphasis
EXISTING LAND USE: Indoor Recreation Facility (Yoga), Residential, Vacant
PROPOSED LAND USE: No proposed new uses at this time.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Industrial	LI	City
South	Distribution, Industrial	LI	City
East	Vacant, Industrial	LI	City
West	Vacant	LI	City

EXECUTIVE SUMMARY:

This zone change application proposes changing the zoning of a portion of Block 225 of the Original City from LI Light Industrial to MUB Mixed-Use Business Emphasis. The subject property is within the West Edge District. The West Edge Area Wide Plan designates the subject property as part of the Rail Line District. This district is intended to develop with a mix of uses, including residential, commercial, service, and office uses. The West Edge Visionary Blueprint and West Edge Area Wide Plan envision the area as a pedestrian-oriented district that celebrates the industrial history of the area through reuse of existing buildings. The MUB District is designated as the optimal zone for the Rail Line District. Additionally, the MUB zone is identified as the preferred zone district for the property in the Reed Avenue Rail Corridor Plan.

The future land use map designates this area of the City as Mixed-use. By changing the zoning to MUB, this site will be permitted to develop with a greater variety of uses. The street network in this area of the City currently consists of compact, highly-connected blocks. Many buildings in this area of the City are built adjacent to and facing the street – including existing buildings on the subject property. MUB zoning encourages buildings to be built adjacent to the street in a connected street network with small blocks. The MUB zone district typically allows for more practical use of smaller properties in more urban settings, by allowing greater lot coverage and requiring less landscaping.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

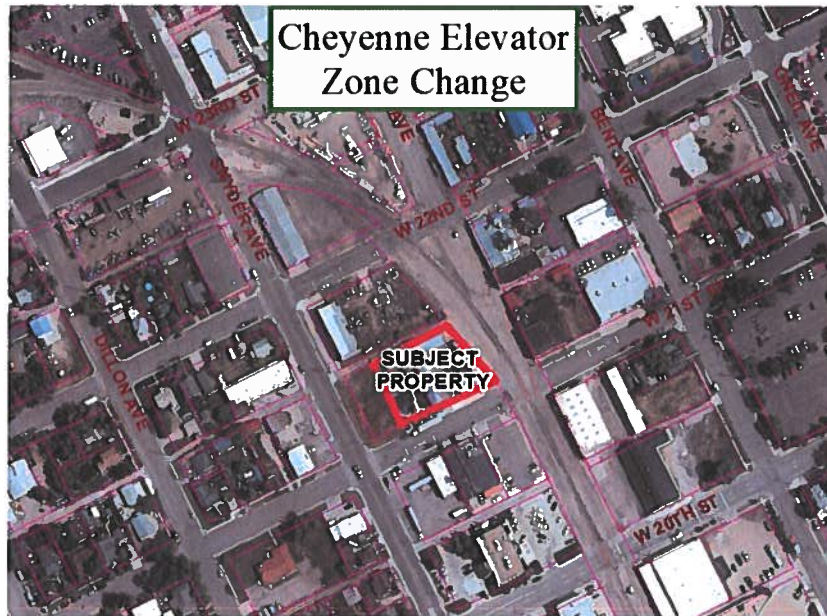
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located at 800 and 816 West 21st Street.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject property from the intersection of 21st Street and Reed Avenue, facing northwest

Source: Development Office



Photograph #2 – Image of the subject property from the intersection of 21st Street, facing north

Source: Development Office



Photograph #3 – Image of 816 W. 21st Street, facing northwest
Source: Development Office

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

1. **PLANCHEYENNE** - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change.

The future land use map identifies the subject property, and most of the surrounding parcels, as Mixed-Use. The proposed zone, MUB Mixed-Use Business Emphasis, allows a much broader mix of uses than the current zoning of LI Light Industrial. This location is also near the Central Business District. The rezone application is not due to any current development proposals, rather preparing the subject property for development opportunities that meet the vision of the West Edge District. The West Edge Vision calls for a mix of uses and acknowledges celebrating the industrial character of the area.

Specifically, this site is designated as Mixed-Use Employment District in PlanCheyenne. The Mixed-Use Employment District encourages office and light industrial in a campus setting, with retail and civic uses as accessory uses. While the future land use designation of Mixed-Use Employment District does not mention residential as a suggested use, all of Cheyenne's mixed-use zones make allowances for residential development. While the primary uses allowed by the MUB zone are commercial retail and commercial service – residential, office, and even limited industrial uses are allowed in the MUB zone.

Future Land Use



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

Policy 1.1.A:

Balanced Mix of Land Uses: The Future Land Use Plan establishes a balanced mix of residential and non-residential land uses throughout the Cheyenne Area. The City and County should use the Future Land Use Plan and this Plan's policies as the main tools for guiding decisions about growth and development.

Assessment:

The proposed zoning map amendment will change the subject property's zoning to Mixed-use Business. This will allow for a variety of uses on the subject property fulfilling this objective and the future land use designation.

Policy 1.1.B:

Flexibility to Market Demands: The Future Land Use Plan does not predetermine all land uses on individual parcels and is intended to provide some flexibility for the market to help determine which uses are needed at a given time. However, when evaluating land uses for a proposed development, consider whether a diverse and integrated mix of uses is provided throughout the entire Cheyenne urbanized area.

Assessment:

Although the future land use designation is mixed-use, it does not anticipate pedestrian-oriented, compact development patterns. The West Edge District had not come to fruition in 2014 at the time of the PlanCheyenne update and permitting this zone change would show flexibility to the market demands triggered by West Edge planning efforts.

Policy 1.4.E:

Building Reuse: Balance business opportunities with respective impacts as properties change to new uses, encouraging private investment that is calibrated to the surrounding context.

Assessment:

The existing buildings on site are unlikely to be reused for industrial purposes. This zone change will allow existing buildings to be repurposed into new uses.

Policy 5.1.B:

Infill Development: Support preservation efforts that include the construction of complimentary new structures that add to the overall character of the area.

Assessment:

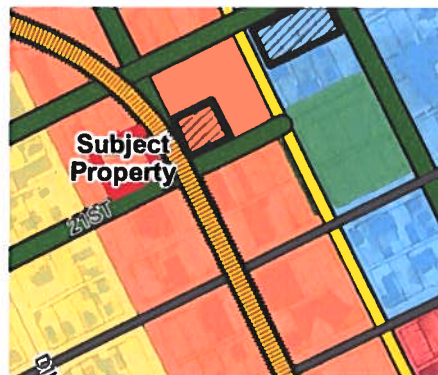
The vision of the West Edge includes preserving important buildings in the District (the Cheyenne Elevator, included) and complimenting these structures with new buildings through design guidelines. This zone change will allow 800 and 821 W 21st Street to accomplish this vision.

- 2. SURROUNDING AREA** - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

This proposed project is in the West Edge District. The West Edge has been subject to several Planning efforts that have recommended the area be transformed into a mixed-use, pedestrian-oriented District that celebrates the industrial history of the district. The proximity to the rail spur led this property to be designated as part of the Rail Line Sub-District by the West Edge Area Wide Plan. The Rail Line District is intended a mix of uses with residential upper floors, adaptive reuse of existing structures, and new construction increasing the density of buildings. The MUB zone allows this style of development and is the suggested zone for this district.

West Edge Area Wide Plan

Extracts from Page 23



Districts

- Civic Place Sub-District
- Urban Living Sub-District
- Pedestrian Retail Sub-District
- Rail Line Sub-District
- Central Business Sub-District

This property, and the surrounding area, is designated with forms of mixed use by PlanCheyenne. The current zoning of this property and the surrounding area prevents a mix of uses as it is zoned LI Light Industrial. The MUB zone allows mixed use development. This parcel is in close proximity to the CBD zone of downtown, which also allows a mix of uses. While much of the surrounding area is zoned LI, the buildings in much of the surrounding area are oriented to and adjacent to the streets. LI zoning has setback requirements which would not permit new construction to be adjacent to the streets. The MUB zone allows new development to match the character of many of the existing surrounding structures. The block pattern in this area is supportive of MUB-style development.

Character District	Appropriate Base Zone
Civic Place Sub-District	P - Public CBD - Central Business District
Urban Living Sub-District	NRs - Neighborhood Residential MUR - Mixed Use Residential
Pedestrian Retail Sub-District	MUB - Mixed Use Business
Rail Line Sub-District	MUB - Mixed Use Business
Central Business Sub-District	CBD - Central Business District

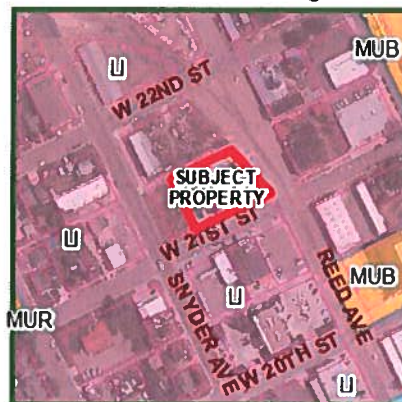
The subject property is also located within the study area for the Reed Avenue Rail Corridor Master Plan (adopted in 2018). The Master Plan encourages adaptive reuse, residential allowances, and MUB zoning for the entire corridor. The existing building on the site is identified as a "Character-Rich/Adaptable Structure" by the plan and the plan encourages these structures be adaptively reused with a mix of uses.

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

MUB zoning allows a mix of uses, and encourages smaller blocks with buildings built adjacent to and facing the street. MUB zoning also encourages pedestrian scale amenities. The current zoning (LI Light Industrial) encourages mostly industrial and commercial uses and requires buildings to be set back from the street. LI zoning is intended to be located in areas capable of providing substantial buffers to adjacent sites and differing land uses.

As the MUB zone allows a broader mix of uses, this zone change will allow the mix of uses designated for the area by the future land use map to develop. The existing street network, block sizes, and parcel sizes in this area match the intent of the MUB zone better than that of the LI zone. Blocks and parcels in this area of town are too small to provide the substantial buffers asked of the LI zone in the Unified Development Code.

Current Zoning



Map #4 – Zone Districts
Source: Cheyenne/Laramie County GIS Cooperative Program

4. STREETS & OPEN SPACE - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is seeking to rezone the land as is. Any additional lot requirements in regard to the use of the parcel will be addressed in the site plan review process. This neighborhood has a robust street network with appropriately sized blocks for MUB style development.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The MUB zone is intended to have a diverse mix of uses in a compact development pattern. The smaller blocks of the current street network meet the intent of the MUB zone. The orientation and location of some of the existing buildings on the site better match the standards of the MUB zone than the LI zone. Development at this location will be capable of meeting the design requirements of the MUB zone.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

There are currently no new development plans for the subject property. Future development (or redevelopment) on this parcel will have more use options and smaller setback requirements with MUB zoning.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

The following agencies were assigned to review this proposal: Community Recreation and Events, Engineering, Metropolitan Planning Organization, and Planning and Development.

Reviewing Agencies with Comments:

- Planning and Development
 - o **FYI** MUB zoning for this property is supported by the West Edge Plan. The plan specifically calls out MUB as the optimal zoning for this block.
 - o **FYI** The subject property better meets the intent and applicability of the MUB zone than the LI zone (compare UDC 5.4.5.a-c with 5.5.1.a-c).
 - o **FYI** If the entire zone change were one development parcel - lot type would be considered "MUB". If parcels remain separate, lot type would be considered "NB5".
 - o **FYI** Existing structures are nonconforming in the LI zone: A 25' setback is required off of all street property lines, and some structures on site are less than 5' from the 21st Street or the Reed Avenue right-of-way.
The existing structures are also nonconforming in the MUB zone: A 5' or 15' setback is required from an alley, and there are structures less than 5' from the alley.
The zone change would be trading a ~25' nonconforming setback along 20th street for a ~5' nonconforming setback along the alley.
 - o **FYI** MUB zoning requires new development to meet design standards of 6.7.

All other reviewing agencies did not provide Comments.

Other Comments Received:

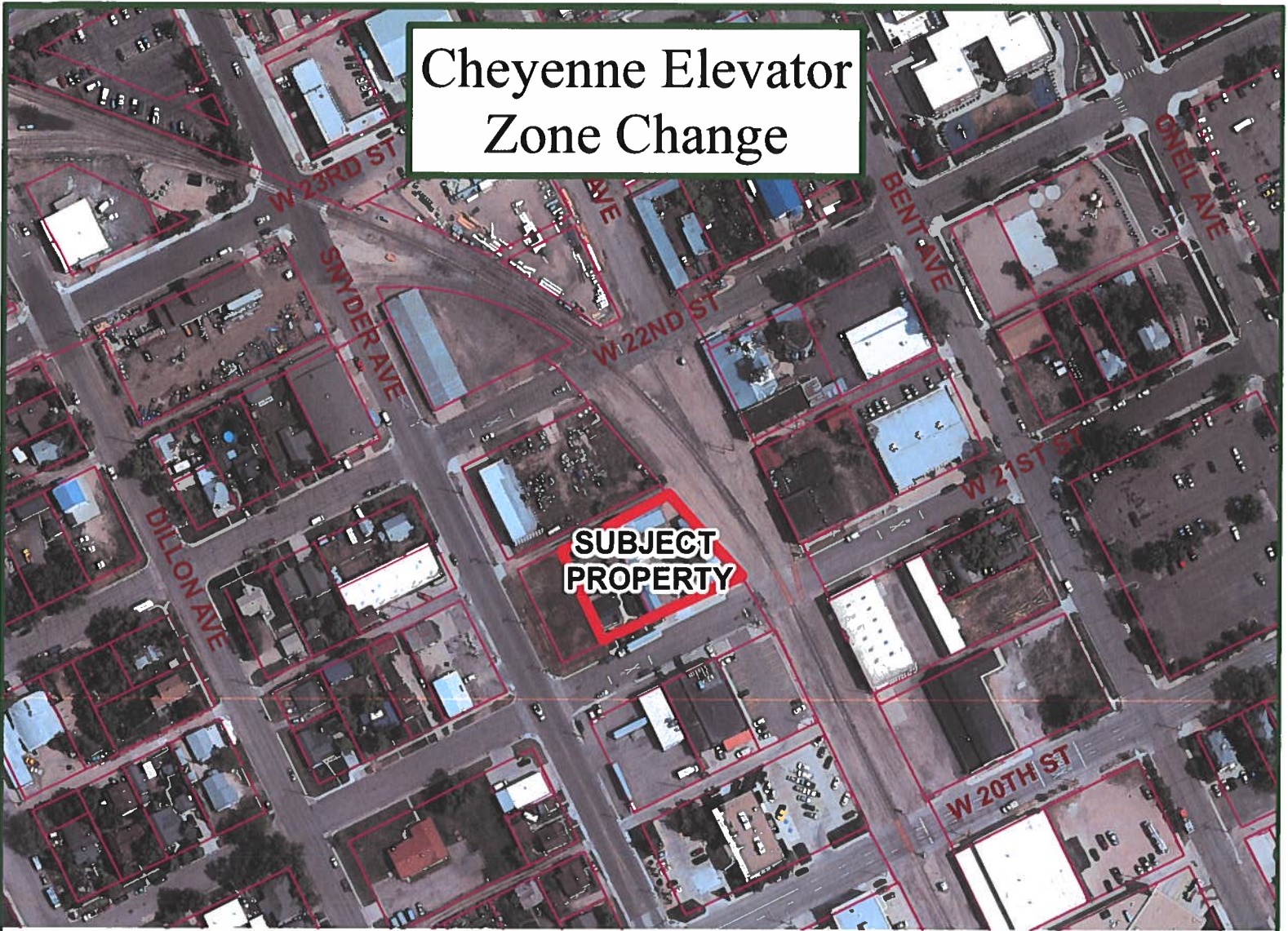
- None.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

Cc: Owner, Agent/Applicant, File

Cheyenne Elevator Zone Change

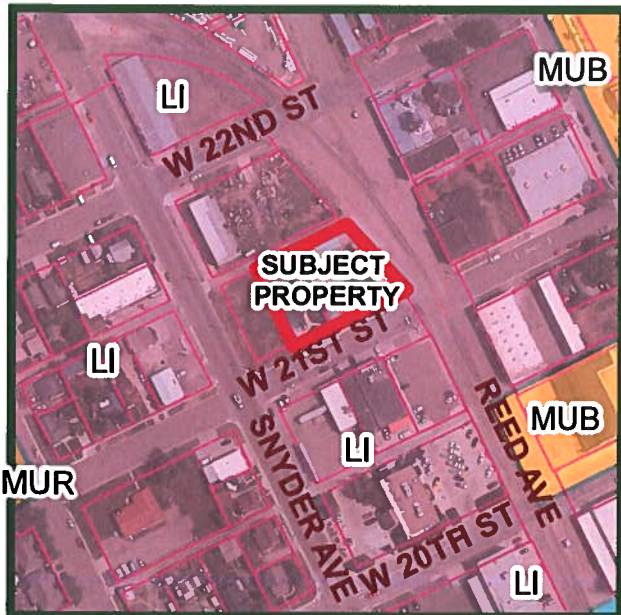


Application Number
Zone Change
UDC-20-00153

Applicant:
Ayres Associates
Owner: Ful O Pep LLC

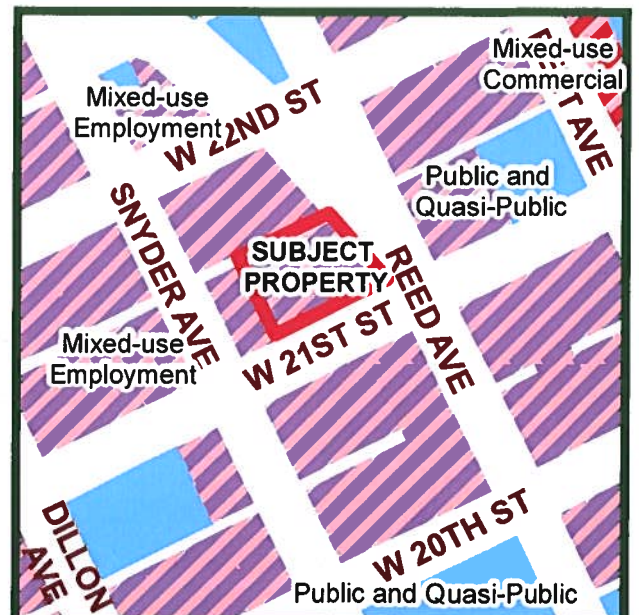
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Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Cheyenne Elevator Zone Change

Owner: Haley, William Powell REV TR
805 W 22nd Street
Land Use: Industrial
Zoning: LI

Owner: Haley, William Powell REV TR
818 W 21st Street
Land Use: Vacant
Zoning: LI

Owner: Taco Johns International Inc
808 W 20th Street
Land Use: Commercial
Zoning: LI

Owner: Lanzi, Jerry ET UX
805 W 21st Street
Land Use: Commercial
Zoning: LI

Owner: Southern Foods Group
823 W 21st Street
Land Use: Commercial
Zoning: LI

Date of Preparation: 4/15/20



// Information

Legal Description: Original City: Lot 7 & Lot 8, exc that fractional part of SD Lot 8 belonging to & a part of the R/W of the Colorado & Southern Railway Company, Block 225 & Original City: Lot 6, Block 225.

Address: 800 & 816 W. 21st Street

Current Zoning: LI

Proposed Zoning: MUB

Proposed Use: Unknown

Site Area: 25,674 SF/ 0.59 Acres

Building Area: 8,140 SF (Buildings to remain)

Site Dimensions:

800 W 21st Street/ 816 W 21st Street
 North Property Line: 91.00' / 65.00'
 East Property Line: 129.00' / 134.00'
 South Property Line: 126.00' / 66.00'
 West Property Line: 134.00' / 131.00'

Parking: To be addressed on future Site Plan submittal.

The closest fire hydrant is located on the NE corner of Reed Ave. and W. 21st St.

Scale: 1" = 482'

AVRES

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and Intelligence.